

CLOUD SERVICES AGREEMENT (“CSA”)

1. Service Description

1CNG offers virtualized server resources within a robust and secure environment, providing customers with flexibility, scalability, and control over their hosting needs. With dedicated resources and customizable configurations, our solutions are ideal for businesses and individuals requiring services.

Scalability: Easily scale up resources based on changing demands, allowing for seamless expansion as your business grows.

Customization: Choose from various operating systems, and software configurations to tailor the specific requirements.

Network Connectivity: Robust network connectivity with high-speed internet access and low-latency connections. Bandwidth allocation based on chosen the service plan, with options for metered or unmetered bandwidth.

Guaranteed Speed: Minimum guaranteed bandwidth of 100 Mbps.

Latency Levels: The cloud infrastructure ensures the cloud infrastructure targets average latency of <25ms within local region and <50ms internationally, subject to ISP routing conditions and external network factors.

Datacenter Tier Classification: Designed in accordance with Tier III design principles, which signifies high availability and redundancy in infrastructure design.

High-Speed Fiber Connectivity: Our datacenters are interconnected via high-speed fiber optic links to ensure low-latency and high-bandwidth connectivity with multiple ISP providers (exceeding a minimum of three providers).

In the event of a fiber route failure, traffic can be rerouted within a few seconds as a highly resilient network architecture interconnects sites through multiple redundant pathways, ensuring continuous availability and fault tolerance in the event of link degradation or failure. While minimal latency may occur during the transition, our redundant network design ensures uninterrupted connectivity.

Redundant Fiber Routes: 1CNG maintain redundant fiber routes between datacenters to minimize the risk of connectivity disruptions and ensure data transmission reliability.

Bandwidth Allocation: Fiber links provide ample bandwidth for data replication, backup transfers, and DR failover operations without performance bottlenecks.

Fault Tolerance: The compute infrastructure is designed with no single point of failure including redundant power supply, network paths, compute, cluster-aware workload.

Data Protection & High Availability: Compute and storage resources are deployed in a clustered configuration with higher redundancy and Automatic VM failover is enabled for physical failures and hypervisor failures.

Support: Utilize redundant infrastructure, backup solutions, and 24/7 monitoring to maintain high availability and uptime for your services.

2. Service Level Agreement (SLA)

2.1 Service Description

The Service Level Agreement (SLA) governs the provision of cloud services by 1CNG. It includes a detailed description of the services being offered, such as cloud infrastructure, software applications, or data storage solutions. The SLA will specify the features and functionalities of the services, ensuring clarity and understanding between the 1CNG and the Customer.

2.2 SLA Times

Priority Level	Description	Typical Scenarios	Response Time	Resolution Time	Root Cause Analysis
Critical	Full service disruption. Affects all customers or core systems. No workaround.	VM access unreachable, Major infrastructure failure	within 2 hours	within 4 hours	within 24 hours
High Priority	Major functionality disrupted. Affects many users. Partial workaround possible.	Partial network, compute or storage outage	within 2 hours	within 8 hours	within 24 hours
Medium Priority	Limited issue with moderate impact. Affects few users or non-core features. Workaround available.	Performance degradation for some users	within 2 hours	within 24 hours	within 72 hours
Low Priority	Minor issue. No impact on operations. Cosmetic or informational.	Suggestions for improvement	within 2 hours	within 72 hours	within 72 hours

Root Cause Analysis (RCA) shall follow 1CNG standard incident reporting template.

Customer must submit SLA claim within seven (7) days after the end of affected month.

2.3 Service Support Hours

Our dedicated technical support team provides 24/7 active support coverage. Our support engineers are available for real-time ticket resolution, system monitoring, and technical consultations.

2.4 Uptime Guarantee Period (Monthly)

	Response Time
Monthly Uptime	99.95% uptime

1CNG commits to a 99.95% uptime for its Cloud services, excluding the exceptions listed in “**Exclusions**” section).

Uptime Commitment: 1CNG strives to provide monthly 99.95% uptime for each individual instance. However, 1CNG do not guarantee uninterrupted service due to factors beyond our control (natural disasters, cyber-attacks, etc.). Uptime is defined as the availability of the Cloud to process data requests and maintain connectivity with external networks.

2.5 Downtime Compensation (Monthly)

Instance-Level Uptime	Service credits
Less than 99.95% but equal to or greater than 99%	10%
Less than 99% but equal to or greater than 95%	30%
Less than 95%	100%

Service credits are calculated as a percentage of the total monthly service usage hours for the services and will be issued as additional usage hours, which shall be discounted on the next invoice automatically.

If 1CNG fails to meet the monthly 99.95% uptime guarantee, Customer is eligible for service credits for the services offered under this SLA. Downtime is measured as the total number of minutes the service remains unavailable below 99.95% uptime within a given month, except for circumstances listed in “**Exclusions**” section. Downtime is monitored and recorded by 1CNG’s internal tracking systems.

2.6 Maintenance

Scheduled maintenance will be communicated 7 days in advance. Emergency maintenance may occur without prior notice if necessary to protect the infrastructure and shall be considered as downtime, except for circumstances listed in “**Exclusions**”.

3. Exclusions

The below situations are excluded from the 99.95% uptime guarantee, and downtime occurring in these circumstances will not qualify for service credits:

3.1 Scheduled Maintenance

Regular maintenance, which is necessary for updates and improvements to the Cloud infrastructure, will be communicated 7 days in advance during off-peak hours whenever possible to minimize the impact on customers' VMs. Such maintenance windows are not considered downtime for SLA purposes.

If the scheduled maintenance window exceeds the communicated period, it will be considered downtime for SLA purposes.

3.2 Standard activity windows and notice

Activity Types	Notice Period
Planned infrastructure maintenance	announce at least 7 days in advance
Network upgrades (routers/switches)	announce at least 7 days in advance.
Security patching (urgent, non-critical)	announce at least 3 days in advance
Emergency security updates (urgent, critical)	announce at least 24 hours in advance.

3.3 Customer-Caused Issues

Service disruptions caused by any of the following are not covered by this SLA:

- Misconfigurations or errors caused by the customer's software or settings.
- Misuse of resources, security breaches due to weak passwords, or improper management by the customer.
- Any actions performed by the customer that are prohibited under this CSA (e.g., applying unsafe updates or custom configurations).

4. 1CNG's Warranties

4.1

1CNG warrants that it shall perform the Services with reasonable care and skill, in accordance with generally accepted industry standards, and subject to the SLA.

4.2

Except as expressly stated in this Agreement, no other warranties or guarantees are provided, and the Services are delivered on an "as is" and "as available" basis.

5. User Roles & Responsibilities

5.1 User Responsibilities

5.1.1 Use of Services: Customer shall only use the Cloud for lawful purposes and in accordance with this CSA. Customer is responsible for any data, content, or software installed or operated on the Cloud.

5.1.2 Security: Secure your Cloud and account by implementing appropriate measures (strong passwords, security patches, etc.). 1CNG is not liable for any security breaches caused by the User's failure to use the services in accordance with Terms and Conditions listed under this CSA. 1CNG shall maintain security protocols and quality according to the market standards.

5.1.3 Prohibited Activities

You may not engage in illegal or prohibited activities, including but not limited to:

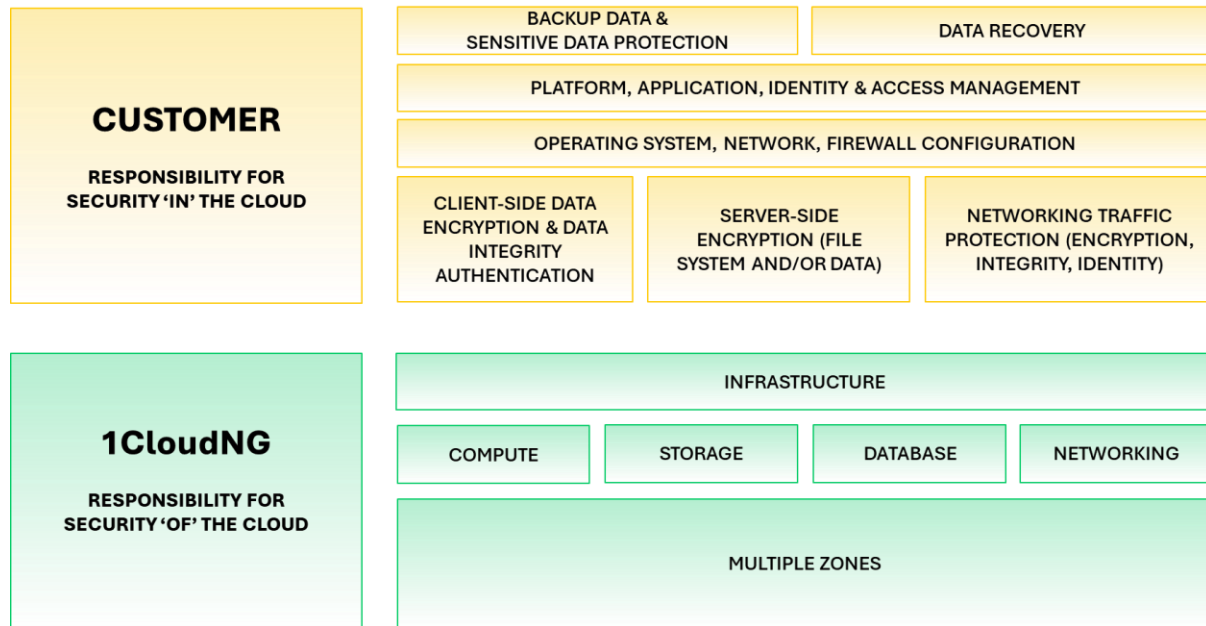
- Hosting, storing, or transmitting unlawful, fraudulent, or malicious content.
- Sending spam emails or initiating distributed denial-of-service (DDoS) attacks.
- Hosting pirated software or copyright-infringing content.
- Using the Cloud for unauthorized cryptocurrency mining.
- Operating VPN, proxy, tunneling, anonymization, or circumvention services in violation of applicable laws, regulations, or lawful government requirements in Myanmar.
- Engaging in any activity that harms, disrupts, compromises, or interferes with 1CNG's network, infrastructure, systems, or services.

1CNG reserves the right to investigate suspected violations and, where a violation is confirmed, to restrict, suspend, or terminate the affected service in accordance with this Agreement and applicable laws and regulations.

5.1.4 Copyrighted Content: Users must not upload, store, share, or distribute copyrighted material without proper authorization or licensing from the copyright owner. This includes text, images, videos, software, and other digital content.

5.1.5 Political Content: Users must not engage in activities that violate government regulations, laws, or political restrictions related to content dissemination, censorship, or expression. This includes content that incites violence, promotes hate speech, or violates human rights.

5.2 Responsibilities Matrix



6. Data Privacy and Security

6.1. VM Instance Security Configuration – Customer's Roles & Responsibility

Customer acknowledges that 1CNG provides only the underlying virtualized infrastructure (compute, storage, and networking). All security configurations within the Customer's VM instances, including but not limited to:

- Operating system hardening and security patch management
- Firewall, security group, and network access control configurations
- User account management, password policies, and access control
- Application-level security settings and service configurations

are the exclusive responsibility of the Customer. 1CNG shall bear no liability for security breaches, unauthorized access, or data loss resulting from the Customer's failure to implement adequate security measures within their VM instances.

6.2. Third-Party Software and Application Vulnerabilities – Explicit Exclusion

Customer assumes full responsibility for all software, applications, libraries, and dependencies installed or deployed on their VM instances. 1CNG is not responsible for

- Security vulnerabilities in third-party software or custom applications deployed by the customer
- Exploitation of unpatched software, outdated dependencies, or known CVEs (Common Vulnerabilities and Exposures)
- Malware infections, ransomware attacks, or unauthorized code execution resulting from Customer-installed software

Customer agrees to maintain active vulnerability management practices, including regular security updates, patch deployment, and CVE monitoring, entirely at their own cost and effort.

6.3. Data Encryption and Key Management

The Customer **expressly acknowledges and agrees** that:

- **Application, database and file encryption**
 - Design, implementation, and operation of application-level encryption, database encryption, and file-level encryption within virtual machines and workloads are **solely the Customer's responsibility**.
- **Key management and key security**
 - All encryption key generation, key storage, key rotation, and access control (including any key management system used by the Customer) are **exclusively managed and controlled by the Customer**.
 - The Customer is fully responsible for protecting its keys against loss, disclosure, or misuse.
- **No access / No recovery by 1CNG**
 - 1CNG does **not** have access to Customer-managed encryption keys or to any data encrypted by the Customer inside VM instances, applications, or databases.
 - 1CNG is **not responsible** for, and **cannot recover**, Customer-encrypted data if the Customer loses or mismanages its encryption keys.
- **Backup data and sensitive data protection**
 - Any encryption and protection of backup data created, stored, or managed **by the Customer** (including in-guest backups, application backups, or external backup systems) are the **Customer's sole responsibility**.
 - 1CNG has no obligation to ensure recoverability of Customer-encrypted backup data where keys or decryption material are not available from the Customer.

Nothing in this section obligates 1CNG to implement, manage, or operate encryption or key-management functions within the Customer's applications, databases, or virtual machines.

6.4. Security Incident Response and Forensic Limitations

In the event of a security incident affecting the Customer's VM instance -

- 1CNG's responsibility is strictly limited to infrastructure-level investigation (host hardware, hypervisor, and network metadata logs).
- 1CNG does not have access to, and cannot perform forensic analysis of, the Customer's VM internals, operating system logs, application logs, or file systems.
- Customer is solely responsible for incident detection, containment, eradication, and recovery within their VM instances.
- 1CNG may cooperate with law enforcement or regulatory authorities by providing infrastructure metadata only upon receipt of a valid legal request; 1CNG cannot access, decrypt, or provide Customer data stored within VM instances.
- Customer agrees to maintain appropriate logging, monitoring, and incident response capabilities independently, without reliance on 1CNG for VM-level security event analysis.

6.5. Sensitive and Unlawful Data – Customer Liability

Customer is solely responsible for ensuring that any data stored, processed, or transmitted within their VM instances complies with all applicable laws and regulations of the Republic of the Union of Myanmar. Customer shall not store, process, or distribute.

- Unlawful, fraudulent, or malicious content.
- Sensitive personal data without proper legal authorization or security protections.
- Copyrighted material without proper licensing or authorization from the copyright owner.
- Content that incites violence, promotes hate speech, or violates human rights.

Customer acknowledges that any data breach, loss, or legal liability arising from the storage or processing of such data is exclusively the Customer's responsibility, and Customer shall indemnify and hold 1CNG harmless from all claims, penalties, fines, and legal fees resulting therefrom.

7. Service Restriction and Termination

This CSA is valid for the order which this CSA accompanies.

7.1 Grace Period (7 Days) Notification:

Upon non-payment after the billing cycle, a notification will be sent to the Customer indicating the outstanding payment and the impending service disruption.

Grace Period:

A grace period of 7 days will be provided to the customer to settle the payment and avoid service disruption.

Reminder Notices:

During the grace period, reminder notices will be sent to the Customer to prompt payment and avoid any inconvenience.

Service Disruption (After 7 Days) Suspension:

If payment is not received within the 7-day grace period, the service will be temporarily suspended to prevent further usage.

Data Accessibility:

During the suspension period, customers may have limited or no access to their resources, data, and services.

7.2 Termination

7.2.1 Termination of this Cloud Services Agreement (CSA) shall be available to either party under the following conditions:

- (a) **Breach of Agreement:** If either party breaches the terms of this Agreement, Service Level Agreement, or Terms & Conditions, and fails to remedy such breach within fourteen (14) days after receiving written notice, the non-breaching party may terminate the Agreement immediately.
- (b) **Immediate Termination Events:** Either party may terminate this Agreement immediately upon written notice if the other party:
 - becomes insolvent, is subject to winding-up proceedings, or enters into liquidation;
 - has an administrator, receiver, or similar officer appointed over its business or assets;
 - makes any arrangement with creditors or seeks protection from creditors;
 - ceases or threatens to cease business operations;
 - undergoes a material change in control that affects its ability to perform obligations under this Agreement.
- (c) **Force Majeure:** If a force majeure event continues for more than six (6) months, either party may terminate this Agreement.
- (d) **Termination for Convenience:** Either party may terminate this Agreement by providing thirty (30) days' prior written notice.

7.2.2 Customers are responsible for backing up their data prior to termination. 1CNG will provide reasonable assistance for data migration or backup, subject to technical feasibility and agreed scope.

7.2.3 If payment is received after service suspension but before termination, services will be reinstated upon payment confirmation.

7.2.4 A final notification will be sent to the customer confirming account closure and service termination.

8. Limitation of Liability

To the maximum extent permitted by law, 1CNG shall not be liable for any indirect, incidental, special, or consequential damages. 1CNG's total aggregate liability under this Agreement shall not exceed the fees paid by the Customer to 1CNG in the twelve (12) months preceding the claim. Service credits under the SLA shall be the Customer's sole and exclusive remedy.

9. Force Majeure

9.1 **“Force Majeure Event”** shall mean all events which are beyond the control of a Party, and which have a material and adverse effect on the total or partial performance by a Party of its obligations under this Agreement. Such events shall include, but are not limited to:

- Natural disasters, such as earthquakes, floods, typhoons, storms, or fire;
- Acts of war, acts of public enemies, riots, civil war, terrorism, civil unrest, or blockade;
- Power outages, governmental actions, regulations, or intervention by statutory authorities or public agencies;
- Internet-wide failures, including disruptions in networks or global routing infrastructure;
- Cyber-attacks, including hacking or Distributed Denial of Service (DDoS) attacks;
- Issues arising from third-party software, services, or providers outside the Party’s control; and
- Any other events that cannot be reasonably foreseen, prevented, or controlled.

9.2 Upon occurrence of a Force Majeure Event, either Party shall promptly inform the other Party, in writing, of the occurrence of such Force Majeure Event in reasonable detail.

9.3 If the Customers cannot agree on a mutually acceptable resolution regarding a Force Majeure Event, and the affected Party’s delay or failure to perform its obligations continues for more than thirty (30) days from the start of the Force Majeure Event, either Party may terminate this Agreement by giving written notice to the other Party. Termination under this clause shall not create any liability for either Party for delays or non-performance resulting from the Force Majeure Event.